



Social Security Amendment Act 1974

1974 CHAPTER 58

An Act to amend the provisions of the Social Security Act 1973 as to the rate or amount of contributions; to alter the meaning of "year" in certain provisions of that Act; to extend the power to enable friendly societies to conduct business with a view to establishing occupational pension schemes; to amend section 58 of the National Insurance Act 1965, sections 29(c), 40(1) and 49 of the said Act of 1973 and certain enactments corresponding to the said sections 58 and 40(1); to amend certain enactments in connection with the consolidation of social security legislation; and for purposes connected with the matters aforesaid.

[12th December 1974]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The amounts and percentages specified in sections Contributions. 2 to 5 of the Social Security Act 1973 (which relate to contribu- 1973 c. 38. tions under Part I of that Act) shall be increased as follows—

- (a) in section 2(1) (which provides that the upper and lower earnings limits for Class 1 contributions shall be respectively £8 and £48) for "£8" there shall be substituted "£11" and for "£48" there shall be substituted "£69";
- (b) in section 2(6) (which provides that a Class 1 contribution shall be the following percentage of the relevant earnings, namely 5.25% in the case of a primary contribution at the standard rate, 0.6% in the case

of a primary contribution at the reduced rate and 7.5% in the case of a secondary contribution) for "5.25" there shall be substituted "5.5", for "0.6" there shall be substituted "2" and for "7.5" there shall be substituted "8.5";

- (c) in section 3(1) (under which Class 2 contributions are at the rate of £1.68 a week) for "£1.68" there shall be substituted "£2.41";
- (d) in section 3(5) (under which a person liable for Class 2 contributions in respect of an employment as a self-employed earner may be excepted from the liability for any period for which his earnings from the employment are less than £468 a year) for "£468" there shall be substituted "£675";
- (e) in section 4(1) (under which the amount of a Class 3 contribution is £1.33) for "£1.33" there shall be substituted "£1.90";
- (f) in section 5(2) and (9) (under which a Class 4 contribution is 5% of so much of the relevant gains or profits as exceeds £1,150 and does not exceed £2,500) for "5 per cent." there shall be substituted "8 per cent.", for "£1,150" (including "£1,150" in section 5(9)(c)) there shall be substituted "£1,600" and for "£2,500" there shall be substituted "£3,600";

and in section 45(3)(e) of that Act (which provides that the appropriate national health service allocation in the case of Class 4 contributions is 0.4% of the earnings for which the contributions were paid) for "0.4" there shall be substituted "0.6".

(2) No primary Class 1 contribution shall be payable in respect of—

- (a) an employed earner falling within paragraph (a) or (b) of section 2(7) of the Social Security Act 1973 (which relate to persons over pensionable age who either have retired from regular employment or have not so retired but did not satisfy the contribution conditions for a Category A retirement pension on attaining that age); or
- (b) a woman over pensionable age who was married when she attained that age and has not retired from regular employment and—
 - (i) as to whom the requirements of paragraph (b) of subsection (2) of section 24 of that Act (which relates to the number of years after marriage in a married woman's working life) are not satisfied, and

(ii) who is not a woman who satisfies the requirements of paragraph (a) of that subsection (which relates to a woman who, when she was 55 or older, married the husband to whom she was married on attaining pensionable age);

but nothing in this subsection affects any liability to pay secondary Class 1 contributions in respect of any person.

(3) A woman who has been widowed and—

(a) is liable apart from this subsection to pay primary Class 1 contributions at the standard rate; and

(b) falls within a class of women prescribed for the purposes of this paragraph,

shall be liable to pay those contributions at the reduced rate for prescribed earnings except that she shall be liable to pay them at the standard rate for any of those earnings as respects which she has, in accordance with regulations, elected to pay those contributions at the standard rate and not revoked the election.

(4) In section 42 of the Social Security Act 1973 (hereafter in 1973 c. 38. this Act referred to as “the principal Act”)—

(a) in subsection (2) (which states that regulations shall provide for enabling a married woman or widow to elect to pay primary Class 1 contributions at the reduced rate or not to pay Class 2 contributions) after the word “provide” there shall be inserted and be deemed always to have been inserted the words “, subject to any prescribed conditions and exceptions,”; and

(b) subsection (4) (which authorises the making of regulations about the liability for contributions of women who have been widowed) shall be omitted;

and accordingly in section 2(7)(c) and 3(2)(c) of that Act the words “or (4)” shall be omitted.

2.—(1) The Secretary of State shall not be required by virtue of subsection (1) of section 7 of the principal Act (which among other things provides for the alteration by order of the amounts of basic scheme contributions, and of the figures related to such contributions, by reference to changes in the general level of earnings which have taken place in and since the year 1971-72) to carry out a review with a view to determining whether to make an order under that section in relation to the first year of operation of sections 2 to 5 of that Act; and accordingly in that subsection for the words from the beginning to “Secretary of State” there shall be substituted the words “As soon as may be after 6th April 1975 the Secretary of State”, for the words ^{Provisions supplementary to s. 1.}

"1971-72" there shall be substituted the words "1973-74" and for the words "first year" there shall be substituted the words "second year".

(2) Any regulations made by virtue of subsection (4) of section 42 of the principal Act shall be treated as made by virtue of subsection (1) of that section (under which Part I of the principal Act may be modified by regulations in its application to women who are or have been married); and it is hereby declared that nothing in the said subsection (4) prejudiced the generality of the said subsection (1).

(3) Subsections (2) and (3) of the preceding section shall be construed as one with the principal Act, but section 97(1) of that Act (which provides that no regulations shall be made under specified provisions of that Act unless a draft of the regulations has been approved by a resolution of each House of Parliament) and paragraph 15(1) of Schedule 25 to that Act (which relates to regulations made for Northern Ireland under those provisions) shall have effect as if the said subsection (3) were included among those provisions.

(4) In subsection (6) of section 8 of the principal Act (which provides that an order under that section shall not increase by more than 0.25 per cent. the percentage specified in section 2(6) or 5(2) of that Act as originally passed) for the words "originally passed" there shall be substituted the words "for the time being amended by any other Act".

Meaning
of "year".

3. The following references to a year in the principal Act, namely—

- (a) any reference in sections 5(7)(a), 23(2) and 30(2)(a) and paragraphs 4(2), 5(5)(a) and 6(2) of Schedule 3;
- (b) the last reference in section 24(2)(b)(i) and paragraph 7(2) of Schedule 3; and
- (c) the third reference ("that in which") in paragraph 5(4) of Schedule 3 and the second reference in paragraph 2(a) of Schedule 8,

shall be construed as references to an income tax year within the meaning of that Act.

Conduct by
friendly
societies of
business for
establishing
occupational
pension
schemes.

4. In section 71(1) of the principal Act (under which regulations may enable a registered society within the meaning of the Friendly Societies Acts 1896 to 1971 to conduct approved group insurance business with a view to the establishment of occupational pension schemes by reference to which the employment of members of the society can be recognised pensionable employment) the words from "by reference" onwards shall be omitted.

5.—(1) Section 58 of the National Insurance Act 1965 (which relates to payments in lieu of contributions) shall have effect, and shall be deemed to have had effect from the beginning of 15th February 1971, subject to the amendment specified in regulation 4(9) of the Family Allowances, National Insurance, Industrial Injuries and Miscellaneous Provisions (Decimalisation of the Currency) Regulations 1970 (which provides for a payment in lieu of contributions of a specified amount for each complete contribution week during the relevant period of service for which contributions were payable at the non-participating employment rate) but with the substitution for the words from “complete” to “employment rate” of the words “contribution week beginning during that period”.

Miscellaneous amendments, and amendments in connection with the consolidation of social security legislation.
1965 c. 51.
S.I. 1970/46.

(2) The preceding subsection shall apply to section 57 of the National Insurance Act (Northern Ireland) 1966 (which corresponds to the said section 58) as it applies to the said section 58 but with the substitution for the reference to the said regulation 4(9) of a reference to regulation 4(9) of the Family Allowances, National Insurance, Industrial Injuries and Miscellaneous Provisions (Decimalisation of the Currency) Regulations (Northern Ireland) 1970.

1966 c. 6 (N.I.).
S.R. & O.
(N.I.) 1970/15.

(3) In section 29(c) of the principal Act (under which it is a condition of a woman's entitlement to a child's special allowance that either her late husband had been contributing at not less than the prescribed weekly rate to the cost of providing for the child or she was entitled at the date of his death, under a court order, trust or agreement, to payments for the child, at not less than the weekly rate, provided or procured by him) for the words “the weekly rate” there shall be substituted the words “that rate”.

(4) In section 40(1) of the principal Act (which provides that that Act shall, except in certain cases, apply to persons employed by or under the Crown in like manner as if such persons were employed earners in the employment of a private person) and in paragraphs 42 and 145 of Schedule 27 to that Act (which substitute for section 74 of the National Insurance (Industrial Injuries) Act 1965 and section 70 of the National Insurance (Industrial Injuries) Act (Northern Ireland) 1966 provisions corresponding to the said section 40(1)) for the words “earners in the employment of” there shall be substituted the word “by”.

1965 c. 52.
1966 c. 9 (N.I.).

(5) In section 49 of the principal Act, subsection (6)(c) (under which the Joint Authority for Great Britain and Northern Ireland which is continued in force for social security purposes by subsection (4) of that section may be substituted for the Secretary of State and a Northern Ireland department as the authority empowered to make certain regulations and orders under Part I of that Act) and subsection (7) (which among

other things authorises the Joint Authority to make regulations applying section 40(2) to (4) of that Act to Northern Ireland) shall be omitted; and in consequence the following provisions of the principal Act shall have effect with the following amendments, namely—

- (a) in section 40(4) after the word “prescribed” there shall be inserted the words “by regulations made by the Secretary of State”;
- (b) in section 48(4) the words from “the Joint Authority” to “by”, the words “or Joint Authority” and the words “authority or” shall be omitted;
- (c) in section 49, in subsection (1) (which among other things excludes section 40(2) to (4) of the principal Act from the provisions which extend to Northern Ireland) the words “40(2) to (4)” shall be omitted, and subsection (8) (which relates to sums determined by regulations under subsection (7) of that section) shall be omitted;
- (d) in sections 96(6) and 97(3) and paragraph 7 of Schedule 25 the words “or the Joint Authority” shall be omitted; and
- (e) in paragraph 2 of Schedule 13, in the entry relating to the Secretary of State (which, as amended by the National Insurance Measure (Northern Ireland) 1974, excludes among other provisions section 14(2)(e) of that Act from the adaptations made by that entry), after the word “14(2)(e)” there shall be inserted the words “, section 40”.

(6) The enactments specified in Schedule 1 to this Act shall have effect subject to the amendments there specified (which are amendments in connection with the consolidation of enactments relating to social security).

Citation,
interpretation,
repeals,
commence-
ment and
extent.

6.—(1) This Act may be cited as the Social Security Amendment Act 1974 and this Act and the principal Act may be cited together as the Social Security Acts 1973 and 1974.

(2) In this Act—

“enactment” includes an enactment of the Parliament of Northern Ireland and an enactment of the Northern Ireland Assembly; and

“the principal Act” means the Social Security Act 1973;

and references in this Act to any enactment are, except where the context otherwise requires, references to that enactment as amended by or under any other enactment.

(3) The enactments mentioned in the first and second columns of Schedule 2 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

1973 c. 38.

(4) The following provisions of this Act, namely, section 5(6), Schedule 1 and so much of Schedule 2 as specifies provisions which cease to have effect by virtue of Schedule 1, shall come into force on such day as the Secretary of State may specify by order made by statutory instrument.

(5) This Act extends to Northern Ireland except so far as it amends or repeals any enactment which does not so extend.

SCHEDULES

SCHEDULE 1

Section 5(6).

AMENDMENTS IN CONNECTION WITH THE CONSOLIDATION
OF SOCIAL SECURITY LEGISLATION

PART I

ENACTMENTS OF THE PARLIAMENT OF THE UNITED KINGDOM

1965 c. 51.

National Insurance Act 1965

1. The National Insurance Act 1965 shall be amended as shown below in this paragraph.

Provision of Act	Amendment
Section 64 (Interpretation of Part IV)	In paragraph (c), after " "claimant" " insert— "(i) in relation to contributions and benefit under Part I of the Social Security Act"; and at the end of the paragraph insert— "(ii) in relation to benefit under Part II or IV of the Industrial Injuries Act has the same meaning as in that Act; (iii) includes, in relation to an award or decision, a beneficiary under the award or affected by the decision; and 'claim' shall be construed accordingly".
Section 65 (Appeals from Secretary of State's decisions)	In subsection (1), after " to (c) " insert " or (1A)(a) ".
Section 66 (Review of Secretary of State's decisions)	In subsection (1), after " to (c) " insert " or (1A) ".
	In subsection (2), after " Act " insert " or in section 35(2) of the Industrial Injuries Act ".
Section 68 (Submission of claims and questions to insurance officers)	In subsection (1), after " this Act " insert " and the Industrial Injuries Act ".
	In subsection (2), after " benefit " insert " under Part I of the Social Security Act or under the Industrial Injuries Act ".
	In subsection (5), after " Act " insert " and Part III of the Industrial Injuries Act ".
Section 69 (Appeals from insurance officer to local tribunal)	In subsection (1), in the proviso, after " 84(1) " insert " or (1A) ".

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Provision of Act	Amendment
Section 70A (Determination of questions first arising on appeal)	After "Where" insert "(a)" and after "applies" insert— "or (b) any question under the Industrial Injuries Act (not being a question to which section 84(1A) of the Social Security Act applies or a disablement question under section 37 of the Industrial Injuries Act)".
Section 71 (Reference of special questions)	In subsection (1), after "84(1)" insert "or (1A)"; after "applies" insert "or a disablement question under section 37 of the Industrial Injuries Act"; omit "(subject to any necessary modifications)" in paragraph (a) and in that paragraph after the second "that Act" insert "or section 37 of the Industrial Injuries Act".
Section 72 (Review of decisions of insurance officer etc.)	In subsection (1)(c), for "in accordance with the provisions of section 66 of this Act or reviewed in accordance with the provisions of" substitute "under section 66 of this Act or".
Section 73 (Regulations for determination of questions)	For subsection (1) substitute— "(1) Subject to the provisions of this Part of this Act and Part III of the Industrial Injuries Act, provision may be made by regulations for the determination— (a) by the Secretary of State; or (b) by a person or tribunal appointed or constituted in accordance with the regulations, of any question arising under or in connection with the National Insurance Acts 1965 to 1974, the National Insurance (Industrial Injuries) Acts 1965 to 1974 or the Social Security Act, including any claim for benefit. (1A) Regulations under subsection (1) above may modify, add to or exclude any provisions of this Part of this Act or Part III of the Industrial Injuries Act or section 84 of the Social Security Act, so far as relating to any questions to which the regulations relate." In subsection (2), after "84(1)" insert "or (1A)"; and omit "and other than a question as to entitlement to a death grant".
Section 75 (Supplementary provisions as to adjudication)	For subsection (1) substitute the following— "(1) Subject to the provisions of this Part of this Act, Part III of the Industrial Injuries Act, and section 84

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Provision of Act	Amendment
Section 75 (Supplementary provisions as to adjudication)—<i>cont.</i>	of the Social Security Act, the decision of any claim or question in accordance with those provisions shall be final; and subject to the provisions of any regulations under section 73 of this Act, the decision of any claim or question in accordance with those provisions shall be final ”. In subsection (2)— (a) for the words from the beginning to “include” substitute— “ (2) Regulations may, for any purposes of this Part of this Act or Part III of the Industrial Injuries Act, make ”; (b) in paragraph (a), omit “the procedure which is to be followed ”; (c) in paragraph (b), for the words from “for making” to the end substitute “for producing any evidence or for making an appeal ”; (d) in paragraph (f), after “State” insert “a Commissioner ”; (e) for the words from “any proceedings” (in the passage following paragraph (g)) to the end of the subsection substitute “any proceedings under this Part of this Act or section 84 of the Social Security Act ”; After subsection (2) insert— “ (2A) Regulations under this section may deal differently with claims and questions relating to benefit under Part I of the Social Security Act and those relating to benefit under the Industrial Injuries Act.”.
Section 76 (Determination of certain questions as to child or family)	In subsection (1), after “thereof” insert “or with respect to benefit under the Industrial Injuries Act (other than such a question as is mentioned in section 35(2) of that Act) ”; and omit the words “in like manner” and the words from “as a corresponding ” to the end.
Section 77 (Constitution of local tribunals)	Omit subsection (6).
Section 81 (Benefit wrongly paid; interim awards, etc.)	In subsection (6), omit “Part II of ”.

National Insurance (Industrial Injuries) Act 1965

2. The National Insurance (Industrial Injuries) Act 1965 shall be amended as shown below in this paragraph. SCH. 1
1965 c. 52.

Provision of Act	Amendment
Section 5 (General right to, and description of, benefit)	In subsection (4), for " section 76 of this Act and section 94(8) " substitute " sections 41 and 43 ".
Section 17 (Increase of benefit in respect of children)	In subsection (2), for " date of the relevant accident and " substitute " day for which the increase under this section is claimed and was ", and for " with that date " substitute " immediately before that day ". For subsections (3) and (4) substitute— " (3) Subject to subsection (5) below, where a man is entitled to injury benefit or a disablement pension there shall be treated as included in the beneficiary's family— (a) a child who, on the day for which the increase provided by subsection (1) above is claimed, could (though not otherwise included in the beneficiary's family) have been treated as so included by virtue of paragraph 3 of the Schedule to the Family Allowances Act; and (b) a child who could have been so treated but for the fact that the beneficiary is contributing at the appropriate rate to the cost of providing for the child; and " the appropriate rate " is a weekly rate which, though not less than the prescribed rate, is less than the minimum rate for the time being required for the purposes of section 3(2) of the Family Allowances Act. (4) An increase under this section of any amount in respect of a particular child shall for any period be payable only if during that period one or other of the following conditions is satisfied with respect to the child— (a) the child is living with the beneficiary; or (b) the requisite contributions are being made to the cost of providing for the child. (4A) The condition specified in subsection (4)(b) above shall be treated as satisfied if, and only if— (a) such contributions are being made at a weekly rate not less

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Provision of Act	Amendment
Section 17 (Increase of benefit in respect of children)— <i>cont.</i>	than the amount referred to in subsection (4)— (i) by the beneficiary, or (ii) where the beneficiary is one of two spouses living together, by them together; and (b) where an allowance under the Family Allowances Act is payable in respect of the child as a child of the beneficiary's family, the contributions are over and above those required for the purposes of satisfying section 3(2) of that Act or (as the case may be) the Schedule to that Act, paragraph 1(1), proviso."
Section 21 (Children of deceased's family)	In subsection (4), for " 17(4) and (5) " substitute " 17(4), (4A) and (5) ".
Section 24 (Benefit for woman having care of deceased's children)	In subsection (3), for " section 30(c) of this " substitute " paragraph 3 of Schedule 10 to the Social Security ".
Section 25 (Obligations of claimants and beneficiaries)	In subsection (1), omit paragraphs (b) and (c).
Section 27 (Administration of benefit)	Omit the section.
Section 28 (Benefit to be inalienable)	Omit subsection (1).
Section 30 (Overlapping benefits)	Omit the section.
Section 31 (Disqualifications and suspensions)	Omit subsections (1) and (3). In subsection (2)— (a) in paragraph (a), for " any other provision of that section " substitute " subsection (1)(a), (2) or (3) of that section or paragraph 1(1) or 2A of Schedule 10 to the Social Security Act ", (b) in paragraph (b), omit " or any course which he is so required to attend ".
Section 32 (Disqualification to be disregarded in certain cases)	Omit subsection (1).
Section 33 (Definitions etc. in relation to medical treatment)	Omit subsection (2).

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Provision of Act	Amendment
Section 34 (Provisions as to maintenance and incapacity for self-support)	Omit subsections (1) and (2). In subsection (3), for the words from the beginning to "further" substitute "Regulations under paragraph 10 of Schedule 10 to the Social Security Act may". In subsection (6), after "Act" insert "and of the Social Security Act".
Section 35 (Questions to be determined by Secretary of State)	Omit subsections (1), (3) and (4).
Section 42 (Medical appeals)	In subsection (1) substitute the following for paragraph (b)— " <i>(b)</i> an association of employed earners, or any other association which exists to promote the interests and welfare of its members, where in either case the claimant was a member of the association at the time of the relevant accident".
Section 48 (Declaration that accident is an industrial accident)	In subsection (5)— <i>(a)</i> in paragraph <i>(b)</i> , after the second "employment" insert "for the purposes of this Act"; and <i>(b)</i> omit the words following paragraph <i>(c)</i> .
Section 50 (Supplementary provisions as to adjudication)	Omit subsections (1) and (7). In subsection (2)— <i>(a)</i> for "Regulations may provide" substitute "Regulations under section 75(2) of the Insurance Act may, for any purpose of Part IV of that Act or this Part of this Act, provide"; <i>(b)</i> in paragraph <i>(a)</i> , omit "and the form of any document required"; <i>(c)</i> omit paragraphs <i>(e)</i> , <i>(g)</i> and <i>(h)</i> ; and <i>(d)</i> in paragraph <i>(i)</i> after "under" (in both places) insert "the said Part IV or". In subsections (3) and (4), for "subsection (2) of this section" substitute "section 75(2) of the Insurance Act". At the end of subsection (5) add "under section 75(2) of the Insurance Act". In subsection (6), after "Commissioner" insert "a local tribunal within the meaning of the Insurance Act".
Section 54 (Interim payments, arrears and repayments)	Omit the section.

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Provision of Act	Amendment
Section 57 (Application to diseases of provisions as to benefits and claims)	For subsection (2) substitute— “(2) In relation to prescribed diseases and injuries, regulations may provide— (a) for modifying provisions of this Act relating to injury benefit and disablement benefit and the administration of such benefit; and (b) for adapting references in this Act to accidents. (2A) Regulations shall provide for applying in relation— (a) to claims for benefit under this Part of this Act in respect of a prescribed disease or injury; and (b) to questions arising in connection with such claims or awards of such benefit, the provisions of Part III of this Act and Part IV of the Insurance Act, subject to any prescribed additions or modifications”.
Section 64 (Inspectors) ...	Omit the section.
Section 68 (Offences, penalties and legal proceedings)	Omit the section.
Section 70 (Decisions to be conclusive)	Omit the section.
Section 74 (Crown employment)	In the proviso, for “in the naval, military or air force service of the Crown” substitute “as a member of Her Majesty’s Forces”.
Section 76 (Persons employed on exploitation of continental shelf)	Omit the section.
Section 79 (Persons to be treated as employers in certain cases)	In subsection (1), for “this Act”, where those words occur in paragraph (c), substitute “Part II or Part IV of this Act”; and for “for the purposes of this Act” substitute “in respect of benefit under this Act and the administration of such benefit”.
Section 82 (Supplementary schemes)	In subsection (1), for the first “by this Act” substitute “by Parts II and IV of this Act”; and for the third “this Act” substitute “those Parts”.
Section 83 (Northern Ireland)	Omit the section.

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Provision of Act	Amendment
Section 84 (Countries outside United Kingdom)	In subsection (2), omit paragraph (c) and in paragraph (d) the words from "by payments" onwards.
Section 85 (Orders in Council, regulations, etc.)	Omit subsections (2), (4) and (6); and in subsection (5) omit the words "other than regulations to which subsection (4) of this section applies".
Section 86 (Interpretation)	In subsection (1), in the definition of "claimant", for "means a person claiming" substitute "in relation to benefit under Part II or Part IV of this Act, means a person who has claimed such", and in paragraph (b) of the definition omit "the review of"; omit the definition of "day"; and in the definition of "earnings", for "a gainful occupation" substitute "an employment (within the meaning of the Social Security Act)". At the end of the section add— "(8) Except where the context otherwise requires, references in this Act to any Part of it include references to the Schedules of that Part".
Schedule 7 (Joint Authority for Great Britain and Northern Ireland)	Omit the Schedule.

National Insurance Act 1966

1966 c. 6.

3. The National Insurance Act 1966 shall be amended as shown below in this paragraph.

Provision of Act	Amendment
Section 5 (Amendments of National Insurance (Industrial Injuries) Act 1965)	Omit subsection (4).
Section 6 (Increase of disablement pension for exceptionally severe disablement)	Omit subsection (3).
Section 8 (Amendment as to determination of claims and questions)	In subsection (1), omit paragraph (a).

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Provision of Act	Amendment
Schedule 2 (Modification of Insurance Act, Part IV, as to claims and questions under Industrial Injuries Act)	In paragraph 4(b), for "of which" substitute "or any other association which exists to promote the interests and welfare of its members, if in either case", and after "member" insert "of the association". Omit paragraph 5.

1967 c. 34.

Industrial Injuries and Diseases (Old Cases) Act 1967

4. The Industrial Injuries and Diseases (Old Cases) Act 1967 shall be amended as shown below in this paragraph.

Provision of Act	Amendment
Section 4 (Provisions as to schemes for supplementing workmen's compensation)	In subsection (4), substitute the following for paragraph (c)— "(c) for applying, with or without modifications, paragraph 9 of Schedule 10 to the Social Security Act 1973 or any regulations under paragraph 8(1), (2) or (3) of that Schedule or for making provision corresponding thereto"; and in paragraph (e) after "section 2 or" insert "by way of benefit"; and for the words from "be recovered" onwards substitute "or the Social Security Act 1973 be recovered by deduction from any payment by way of benefit under the Industrial Injuries Act".
Section 9 (Adjustment of benefit)	In subsection (3), after "Part II" insert "or IV".
Section 13 (Application of enactments)	In subsection (1), omit paragraphs (a) and (b).

1973 c. 38.

Social Security Act 1973

5. The Social Security Act 1973 shall be amended as shown below in this paragraph.

Provision of Act	Amendment
Section 1 (Outline of basic scheme contributory system)	In subsection (3), for "Chapter III" substitute "sections 40 to 43 of this Act".
Section 2 (Class 1 contributions)	In subsection (6), for "Chapter III" substitute "sections 40 to 43 of this Act"

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Provision of Act	Amendment
Section 5 (Class 4 contributions)	In subsection (5), for "the basic scheme" substitute "this Part of this Act".
Section 14 (Disqualifications and special conditions)	In subsections (2) and (3), for "Part IV" substitute "sections 68 to 72".
Section 40 (Crown servants, armed forces, etc.)	In subsection (3) for "this Part of this Act" substitute "Chapters I and II of this Part of this Act (except sections 7, 8 and 39), Part IV of the former principal Act and the Industrial Injuries Acts"; and for "its" substitute "their". In subsection (4), after "Act" insert "and the Industrial Injuries Acts".
Section 41 (Mariners, airmen, etc.)	In subsection (1) for "this Part of this Act" substitute "any provision of Chapter I or II of this Part (except sections 7, 8 and 39) or of Part IV of the former principal Act or of the Industrial Injuries Acts", and after "been" insert "or are to be"; in paragraphs (a) and (b) of the subsection for "this Part" substitute "any such provision"; and in paragraph (c) after "meaning" insert "of Chapter I". In subsection (2)(b) for "this Act" substitute "Chapter I of this Part".
Section 42 (Married women and widows)	In subsection (1), for "this Part of this Act" substitute "Chapters I and II of this Part (except sections 7, 8, 37, 38, 39 and Schedule 10)"; and for "its" substitute "their".
Section 43 (Persons outside Great Britain)	In subsections (1) and (2), for "this Part of this Act" substitute "Chapters I and II of this Part (except sections 7, 8 and 39) and Part IV of the former principal Act or of the Industrial Injuries Acts".
Section 45 (Destination of contributions and Treasury supplements)	In subsection (1), after "paragraph 5(3)" insert "but subject to section 5(5) as respects contributions from Northern Ireland". At the end of the section add— " (5) The Secretary of State may make regulations modifying this section, in such manner as he thinks proper, in relation to the contributions of such persons as are referred to in sections 40(3), 41(1), and 43(2) of this Act."
Section 47 (Reports by Government Actuary)	In subsection (2), for "Act and" substitute "Part of this Act and of".

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Provision of Act	Amendment
Section 49 (The basic scheme in Northern Ireland)	In subsection (3), for "Minister" substitute "Ministry"; and for the words from "in Great Britain" onwards substitute "the Industrial Injuries Acts and the National Insurance (Industrial Injuries) Measures (Northern Ireland) 1966 to 1974 with a view to securing that, to the extent allowed for in the arrangements, the whole of that legislation provides a single system of social security for the United Kingdom". In subsection (4), after "Part of this Act" insert "and the Industrial Injuries Acts" In subsection (6)— (a) for "basic scheme" substitute "arrangements"; (b) in paragraph (a), for "between the two territories" substitute "with Northern Ireland or, as the case may be, Great Britain"; and (c) in paragraph (b), for "this Part of this Act in relation to Great Britain or, as the case may be," substitute "the enactments in force in Great Britain or".
Section 50 (Reciprocal agreements with other countries)	In subsection (1), after "modifying" insert "or adapting". In subsection (2), omit "of this Part of this Act".
Section 84 (Questions arising under the basic scheme)	After subsection (1) insert— "(1A) Any of the following questions arising under the Industrial Injuries Act shall be determined by the Secretary of State in accordance with Part IV of the former principal Act— (a) whether a person is or was employed in employed earner's employment; (b) whether— (i) an increase of disablement pension in respect of the need for constant attendance, or (ii) a further increase of disablement pension under section 6 of the National Insurance Act 1966, is to be granted or renewed and, if so, for what period and of what amount; (c) how the limitations under Schedule 5 to the Industrial Injuries Act on the benefit payable in respect of any death are to be applied in the circumstances of any case."

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Provision of Act	Amendment
Section 84 (Questions arising under the basic scheme) —cont.	In subsection (3) after “above” insert “or section 35(2) of the Industrial Injuries Act”. In subsection (4), after “to (c)” insert “or (1A)(a)”. In subsection (5), for the words from the beginning of the subsection to the end of paragraph (a) substitute— “(5) Any of the following questions arising under Part I of this Act or the Industrial Injuries Act— (a) any question arising in connection with a claim for or award of benefit other than— (i) a question for determination by the Secretary of State under subsection (1) or (1A) above or by the Attendance Allowance Board under paragraph 14 of Schedule 7 to the Act, or (ii) the disablement questions within the meaning of section 37 of the Industrial Injuries Act; or”.
Section 88 (Administrative provisions)	In subsection (1), after “Act” (where it first occurs) insert “and the Industrial Injuries Acts”. Omit subsection (3).
Section 89 (Disclosure of information by Inland Revenue)	In subsection (1) for “Minister” substitute “Ministry”. In subsection (1), and in subsection (3)(b), for “thereunder” substitute “under this Act or under the Industrial Injuries Acts or the corresponding Northern Ireland legislation”. In subsection (3)(c), after “principal Act” insert “or Part III of the Industrial Injuries Act”.
Section 92 (Offences, penalties and proceedings)	In subsection (5),— (a) after “under this Act” insert “or the Industrial Injuries Act”; (b) after “84(1)(a) to (c)” insert “or (1A)(a)”.
Section 94 (Assimilation of Industrial Injuries Acts to basic scheme)	Omit subsection (8).
Section 95 (Further provisions as to Northern Ireland)	Omit subsection (5).
Section 96 (Orders and regulations: general provisions)	In subsection (6), after “principal Act” insert “or of the Industrial Injuries Acts”.

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Provision of Act	Amendment
Section 96 (Orders and regulations: general provisions) —cont.	In subsection (7) after “modifications” insert “or adaptations”. At the end of the section add— “(8) In relation to the Industrial Injuries Acts, subsections (2) and (3) above shall apply as if references to this Act included references to those Acts”.
Section 99 (Interpretation)	In subsection (1), in the definitions of “the Industrial Injuries Acts” and “the Old Cases Acts”, for “1972” substitute “1974”; and at the end of the subsection add— “‘benefit’ means benefit under Part I of this Act or, as respects any period before the commencement of this Act, under the former principal Act; ‘beneficiary’, in relation to any benefit, means the person entitled to that benefit; ‘claimant’ and ‘claim’ have the same meanings as in Part IV of the former principal Act; ‘medical practitioner’ has the same meaning as in the Industrial Injuries Act”.
Schedule 7 (Attendance Allowance Board)	In paragraph 6, omit “in paragraph 5”.
Schedule 10 (Ancillary provisions as to basic scheme and other benefits)	In paragraph 1— (a) in sub-paragraph (1), after “manner” insert “and within the prescribed time” (b) substitute the following for sub-paragraph (3)— “(3) Regulations may make provision as to the circumstances in which any benefit which is payable to one person may be paid to another on his behalf”. (c) in sub-paragraph (4)(c), omit “(in any prescribed cases)” and “in the alternative”. In paragraph 2(4)(c) after “other benefit” insert “(except a death grant or death or disablement benefit under the Industrial Injuries Act)”. After paragraph 2 insert— “2A. Regulations may provide— (a) for requiring claimants to furnish to the prescribed person any information required for the determination of the claim

SCH. 1

Provision of Act	Amendment
Schedule 10 (Ancillary provisions as to basic scheme and other benefits)— <i>cont.</i>	or of any question arising in connection with it; (b) for requiring beneficiaries— (i) to furnish to the prescribed person any information required for the determination of a question arising in connection with the award, (ii) to give notice to the prescribed person of any change of circumstances affecting the continuance of the right to benefit or its receipt”. In paragraph 3, substitute the following for sub-paragraph (1)— “(1) Regulations may provide— (a) for adjusting benefit payable to or in respect of any person, or the conditions for its receipt, where— (i) there is payable in his case any such pension or allowance as is described in sub-paragraph (1A) below, or (ii) the person is, or is treated under the regulations as, undergoing medical or other treatment as an in-patient in a hospital or similar institution; (b) for suspending payment of benefit to a person during any period in which he is undergoing such medical or other treatment. (1A) Sub-paragraph (1)(a)(i) above applies to any pension or allowance payable out of public funds (excluding an allowance under the Family Allowances Act, but including any other benefit under this Act or the Industrial Injuries Acts, whether of the same or a different description) which is payable to or in respect of— (a) the person referred to in sub-paragraph (1); (b) that person's wife or husband; (c) any child or adult dependant of that person; or (d) the wife or husband of any adult dependant of that person.”.

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Provision of Act	Amendment
Schedule 10 (Ancillary provisions as to basic scheme and other benefits)—<i>cont.</i>	In paragraph 6, omit the words from " paragraphs 4 " to " and in ". In paragraph 7(1), for the words from " paragraph 2 or 3 above " to " so entitled " substitute " any provision of this Act or the Industrial Injuries Acts disentitling him to receipt of that benefit to be treated as if entitled thereto for the purposes of any rights or obligations (whether his own or another's) under this Act or those Acts which depend on his entitlement ". In paragraph 8— (a) in sub-paragraph (2)(a), omit " notwithstanding anything in this Act ", and for " and a maternity allowance " substitute " a maternity allowance and injury benefit "; (b) in sub-paragraph (3)(a), after " this Act " insert " or the Industrial Injuries Acts ". In paragraph 9(1) after " this Act " insert " and the Industrial Injuries Act ". In paragraph 10(1) after " this Act " insert " or the Industrial Injuries Acts ", and after " mainly " insert " or to a substantial extent ". After paragraph 10 insert— " 11. In this Schedule ' benefit ', except where the context otherwise requires, means benefit under Part I of this Act or under the Industrial Injuries Act ".
Schedule 13 (Adaptation of Part I, and other provisions, for Northern Ireland)	In paragraph 2,— (a) in column 1 of the Table, after " The former principal Act " and " The Industrial Injuries Act " insert (in each case) " (except in the definition of that expression in section 99(1)) ", and after " The National Insurance Act 1970 " insert " (except in paragraph 2 of Schedule 7) "; (b) in column 2 of the Table for " The National Insurance (Industrial Injuries) Acts (Northern Ireland) 1966 to 1972 " substitute " The National Insurance (Industrial Injuries) Measures (Northern Ireland) 1966 to 1974 ", and for " The Workman's Compensation (Supplementation) Acts (Northern Ireland) 1966 to 1972 " substitute " The Workmen's Compensation (Supplementation) Measures (Northern Ireland) 1966 to 1974 ".

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Provision of Act	Amendment
Schedule 13 (Adaptation of Part I, and other provisions, for Northern Ireland)— <i>cont.</i>	In paragraph 3(1) after “ 49 ” insert “ and omit ‘ from year to year ’ ”. After paragraph 5(1) insert— “ (1A) In section 14(2) and (3) (in each case) for ‘ sections 68 to 72 ’ substitute ‘ sections 67 to 71 ’ ”. In paragraph 6 after “ Article ” insert “ 5, 7 ”. In paragraph 9 for “ section 24(8) ” substitute “ sections 24(8) and 25(11) (in each case) ”; and at the end insert “ and after ‘ Act passed ’ insert (in each case) ‘ or Measure of the Northern Ireland Assembly enacted ’ ”. After paragraph 9 insert— “ 9A. In section 28(2) omit ‘ by the Secretary of State ’ ”. In paragraph 11 after “ In ” insert “ section 41(1)(b) omit ‘ any part of ’ and in ”. After paragraph 11 insert— “ 11A. In sections 40(3), 41(1) and 43(1) omit (in each case) ‘ (except sections 7, 8 and 39) ’; and in section 42(1) for ‘ sections 7, 8, 37, 38 and 39 ’ substitute ‘ sections 37 and 38 ’ ”. In paragraph 13— (a) at the end of sub-paragraph (a) insert “, and omit ‘ but subject to section 5(5) as respects contributions from Northern Ireland ’ ”; (b) after sub-paragraph (b) insert— “ (c) in subsection (5) for ‘ 41(1) and 43(2) ’ substitute ‘ and 41(1) ’ ”. In paragraph 14, for sub-paragraph (a) substitute— “ (a) in subsection (1) omit the definitions of ‘ the Industrial Injuries Act ’ and ‘ the former principal Act ’, except so far as they are applicable for the interpretation of section 49(2) and (4) respectively, and the definitions of ‘ the Family Allowances Act ’, ‘ the Industrial Injuries Acts ’ and ‘ the Old Cases Acts ’ ”; and at the end of the paragraph add— “ (c) in subsection (17) for ‘ section 48, 68, 96 or 97 of this Act ’ substitute ‘ section 68, 96 or 97 of this Act or paragraph 15(3) or (3A) of Schedule 25 ’ ”. In paragraph 16(c), for “ 16 ” substitute “ 17 ”.

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Provision of Act	Amendment
Schedule 22 (Miscellaneous administrative provisions)	In paragraphs 1 to 7 and 14(a), construe every reference to "this Act" (except the first reference in paragraph 1) as including the National Insurance (Industrial Injuries) Acts 1965 to 1974 or, in Northern Ireland, the National Insurance (Industrial Injuries) Measures (Northern Ireland) 1966 to 1974. In paragraph 1, at the end of sub-paragraph (b), add "or for investigating the circumstances in which any injury or disease which has given or may give rise to a claim for benefit under the Industrial Injuries Acts was, or may have been, received or contracted". Omit Part III.
Schedule 23 (Proceedings)	In paragraph 15(1), after "payment of" insert "basic scheme".
Schedule 25 (Adaptation of certain provisions of Part IV for Northern Ireland)	In paragraph 3 for "3" substitute— "3.—(1) In section 84(1A)(b)(ii) for "National Insurance Act 1966" substitute "National Insurance (No. 2) Act (Northern Ireland) 1966." (2)". In paragraph 4 omit sub-paragraph (c). In paragraph 7— (a) after "1966" insert "or the National Insurance (Industrial Injuries) Act (Northern Ireland) 1966"; (b) after "the Northern Ireland Ministry" insert "or the Department of Manpower Services for Northern Ireland"; (c) after "that Ministry" (twice) insert "or Department"; (d) after "the former principal Act" insert "or of the Industrial Injuries Acts". Omit paragraph 9. In paragraph 10— (a) in sub-paragraph (f) after "order is made under" insert "the"; (b) after sub-paragraph (h) insert— "(i) in paragraph 14 for '7 to 13' substitute '7 to 9 and 11 to 13'." In paragraph 11, after sub-paragraph (a) insert— "(aa) in paragraph 3(1) for '9 to 14' substitute '9 and 11 to 14';" In paragraph 15— (a) in sub-paragraph (3) after "applies" insert "and all regulations made under Part IV of the National Insurance Act (Northern Ireland)"

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Provision of Act	Amendment
Schedule 25 (Adaptation of certain provisions of Part IV for Northern Ireland) —cont.	1966", and after "1954" insert "and in the case of those made under this Act"; (b) after sub-paragraph (3) insert— "(3A) Any power of the Northern Ireland Ministry to make regulations or orders under this Act shall be exercisable by statutory rule for the purposes of the Statutory Rules Act (Northern Ireland) 1958"; and (c) omit sub-paragraph (4).

PART II

ENACTMENTS OF THE PARLIAMENT OF NORTHERN IRELAND

National Insurance Act (Northern Ireland) 1966

1966 c. 6 (N.I.).

1. The National Insurance Act (Northern Ireland) 1966 shall be amended as shown below in this paragraph.

Provision of Act	Amendment
Section 63 (Interpretation for Part IV)	In paragraph (c), after " "claimant" " insert— "(i) in relation to contributions and benefit under Part I of the Social Security Act"; and at the end of the paragraph insert— "(ii) in relation to benefit under Part II or IV of the Industrial Injuries Act has the same meaning as in that Act; (iii) includes, in relation to an award or decision, a beneficiary under the award or affected by the decision; and "claim" shall be construed accordingly".
Section 64 (Appeals from Department's decisions)	In subsection (1), after "to (c)" insert "or (1A)(a)".
Section 65 (Review of Department's decisions)	In subsection (1), after "to (c)" insert "or (1A)". In subsection (2) after "Act" insert "or in section 35(2) of the Industrial Injuries Act".
Section 67 (Submission of claims and questions to insurance officers)	In subsection (1), after "this Act" insert "and the Industrial Injuries Act". In subsection (2) after "benefit" insert "under Part I of the Social Security Act or under the Industrial Injuries Act". In subsection (5), after "Part" insert "and Part III of the Industrial Injuries Act".

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Provision of Act	Amendment
Section 68 (Appeals from insurance officer to local tribunal)	In subsection (2) after "84(1)" insert "or (1A)".
Section 69A (Determination of questions first arising on appeal)	After "Where" insert "(a)" and after "applies" insert— " "; or (b) any question under the Industrial Injuries Act (not being a question to which section 84(1A) of the Social Security Act applies or a disablement question under section 37 of the Industrial Injuries Act)".
Section 70 (Reference of special questions)	In subsection (1), after "84(1)" insert "or (1A)"; after "applies" insert "or a disablement question under section 37 of the Industrial Injuries Act"; omit "(subject to any necessary modifications)" in paragraph (a); and in that paragraph after the second "that Act" insert "or section 37 of the Industrial Injuries Act".
Section 71 (Review of decisions of insurance officer, etc.)	In subsection (1)(c), for "in accordance with the provisions of section 65 of this Act or reviewed in accordance with the provisions of" substitute "under section 65 of this Act or".
Section 72 (Regulations for determination of questions)	For subsection (1) substitute— "(1) Subject to the provisions of this Part and Part III of the Industrial Injuries Act, provision may be made by regulations for the determination— (a) by the Ministry; or (b) by a person or tribunal appointed or constituted in accordance with the regulations, of any question arising under or in connection with the National Insurance Measures (Northern Ireland) 1966 to 1974, the National Insurance (Industrial Injuries) Measures (Northern Ireland) 1966 to 1974 or the Social Security Act, including any claim for benefit. (1A) Regulations under subsection (1) may modify, add to or exclude any provisions of this Part or Part III of the Industrial Injuries Act or section 84 of the Social Security Act, so far as relating to any questions to which the regulations relate". In subsection (2), after "84(1)" insert "or (1A)"; and omit "and other than a question as to entitlement to a death grant".

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Provision of Act	Amendment
Section 74 (Supplementary provisions as to adjudication)	For subsection (1) substitute— “(1) Subject to the provisions of this Part, Part III of the Industrial Injuries Act and section 84 of the Social Security Act, the decision of any claim or question in accordance with those provisions shall be final; and, subject to the provisions of any regulations under section 72, the decision of any claim or question in accordance with those provisions shall be final.” In subsection (2)— (a) for the words from the beginning to “include” substitute— “(2) Regulations may, for any purpose of this Part or Part III of the Industrial Injuries Act, make”; (b) in paragraph (a), omit “the procedure which is to be followed”; (c) in paragraph (b), for the words from “for making” to the end substitute “for producing any evidence or for making an appeal”; (d) in paragraph (f), after “Ministry” insert “a Commissioner”; (e) in the passage following paragraph (g), for “they” substitute “it” and for the words from “neither” onwards substitute “the Arbitration Act (Northern Ireland) 1937 shall not apply to any proceedings under this Part or section 84 of the Social Security Act”. After subsection (2) insert— “(2A) Regulations under this section may deal differently with claims and questions relating to benefit under Part I of the Social Security Act and those relating to benefit under the Industrial Injuries Act.”.
Section 75 (Determination of certain questions as to child or family)	In subsection (1), after “that Act)” insert “or with respect to benefit under the Industrial Injuries Act (other than such a question as is mentioned in section 35(2) of that Act)”; and omit the words “in like manner” and the words from “as a corresponding” onwards.
Section 76 (Constitution of local tribunals)	In subsection (1)(c) as set out in Part IV of Schedule 25 to the Social Security Act 1973, for “Minister” substitute “Ministry”. Omit subsection (6).

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Provision of Act	Amendment
Section 78 (Retirement of, and superannuation allowances for, Commissioners)	In subsection (1) as set out in Part IV of Schedule 25 to the Social Security Act 1973 for "having" substitute "have".
Section 79 (Remuneration and expenses of Commissioner and other persons)	In subsection (1), after "of a Commissioner" insert "or any tribunal presided over by a Commissioner".
Section 80 (Benefit wrongly paid; interim awards, etc.)	In subsection (6), omit "Part II of".

1966 c. 9 (N.I.).

*National Insurance (Industrial Injuries) Act
(Northern Ireland) 1966*

2. The National Insurance (Industrial Injuries) Act (Northern Ireland) 1966 shall be amended as shown below in this paragraph.

Provision of Act	Amendment
Section 5 (General right to, and description of, benefit)	In subsection (4), for "section 75(2) and of section 94(8)" substitute "sections 41 and 43".
Section 17 (Increase of benefit in respect of children)	In subsection (2)(b), for "date of the relevant accident and" substitute "day for which the increase under this section is claimed and was", and for "with that date" substitute "immediately before that day". For subsections (3) and (4) substitute— "(3) Subject to subsection (5), where a man is entitled to injury benefit or a disablement pension there shall be treated as included in the beneficiary's family— (a) a child who, on the day for which the increase provided by subsection (1) is claimed, could (though not otherwise included in the beneficiary's family) have been treated as so included by virtue of paragraph 3 of the Schedule to the Family Allowances Act; and (b) a child who could have been so treated but for the fact that the beneficiary is contributing at the appropriate rate to the cost of providing for the child; and "the appropriate rate" is a weekly rate which, though not less than the prescribed rate, is less than the minimum rate for the time being required for the purposes of section 3(2) of the Family Allowances Act. (4) An increase under this section of any amount in respect of a particular

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Provision of Act	Amendment
Section 17 (Increase of benefit in respect of children)— <i>cont.</i>	child shall for any period be payable only if during that period one or other of the following conditions is satisfied with respect to the child— (a) the child is living with the beneficiary; or (b) the requisite contributions are being made to the cost of providing for the child. (4A) The condition specified in subsection (4)(b) shall be treated as satisfied if, and only if,— (a) such contributions are being made at a weekly rate not less than the amount referred to in subsection (4)— (i) by the beneficiary, or (ii) where the beneficiary is one of two spouses living together, by them together; and (b) where an allowance under the Family Allowances Act is payable in respect of the child as a child of the beneficiary's family, the contributions are over and above those required for the purposes of satisfying section 3(2) of that Act or (as the case may be) the Schedule to that Act, paragraph 1(2) ”.
Section 21 (Children of deceased's family).	In subsection (4), for “ 17(4) and (5) ” substitute “ 17(4), (4A) and (5) ”.
Section 24 (Women having care of deceased's children)	In subsection (3), for “ section 30(c) ” substitute “ paragraph 3 of Schedule 10 to the Social Security Act ”.
Section 25 (Obligations of claimants and beneficiaries)	In subsection (1), omit paragraphs (b) and (c).
Section 27 (Administration of benefit)	Omit the section.
Section 28 (Benefit to be inalienable)	Omit subsection (1).
Section 30 (Overlapping benefits)	Omit the section.
Section 31 (Disqualifications and suspensions)	Omit subsections (1) and (3). In subsection (2)— (a) in paragraph (a), for “ any other provision of that section ” substitute “ subsection (1)(a), (2) or (3) of

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Provision of Act	Amendment
Section 31 (Disqualifications and suspensions)— <i>cont.</i>	that section or paragraph 1(1) or 2A of Schedule 10 to the Social Security Act ”, (b) in paragraph (b), omit “ or any course which he is so required to attend ”.
Section 32 (Disqualification to be disregarded in certain cases)	Omit subsection (1).
Section 33 (Definitions etc. in relation to medical treatment)	Omit subsection (2).
Section 34 (Provisions as to maintenance and incapacity for self-support)	Omit subsections (1) and (2). In subsection (3), for the words from the beginning to “ further ” substitute “ Regulations under paragraph 10 of Schedule 10 to the Social Security Act may ”. In subsection (7), after “ Act ” insert “ and of the Social Security Act ”.
Section 35 (Questions to be determined by Department)	Omit subsections (1), (3) and (4).
Section 47 (Declaration that accident is an industrial accident)	In subsection (5)— (a) in paragraph (b), after the second “ employment ” insert “ for the purposes of this Act ”; and (b) omit the words following paragraph (c).
Section 49 (Supplementary provisions as to adjudication)	Omit subsection (1). In subsection (2)— (a) for “ Regulations may provide ” substitute “ Regulations under section 74(2) of the Insurance Act may, for any purpose of Part IV of that Act or this Part of this Act, provide ”; (b) in paragraph (a), omit “ and the form of any document required ”; (c) omit paragraphs (e), (g) and (h); and (d) in paragraph (f) after “ under ” (in both places) insert “ the said Part IV or ”. In subsection (3), for “ subsection (2) ” substitute “ section 74(2) of the Insurance Act ”. At the end of subsection (5) add “ under section 74(2) of the Insurance Act ”. In subsection (6), after “ means ” insert “ a Commissioner or local tribunal within the meaning of the Insurance Act ”.

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Provision of Act	Amendment
Section 53 (Interim payments, arrears and repayments)	Omit the section.
Section 55 (Application to diseases of provisions as to benefits and claims)	For subsection (2) substitute— “(2) In relation to prescribed diseases and injuries, regulations may provide— (a) for modifying provisions of this Act relating to injury benefit and disablement benefit and the administration of such benefit; and (b) for adapting references in this Act to accidents”. (2A) Regulations shall provide for applying in relation— (a) to claims for benefit under this Part of this Act in respect of a prescribed disease or injury; and (b) to questions arising in connection with such claims or awards of such benefit, the provisions of Part III of this Act and Part IV of the Insurance Act, subject to any prescribed additions or modifications”.
Section 60 (Inspectors) ...	Omit the section.
Section 62 (Arrangements with United Kingdom departments)	After “this Act” (in each place) insert “the Insurance Act or the Social Security Act”; for “section 63 of the Government of Ireland Act 1920” substitute “section 11 of the Northern Ireland Constitution Act 1973”; and after “performance” insert “by or”.
Section 64 (Offences, penalties and legal proceedings)	Omit the section.
Section 66 (Decisions to be conclusive)	Omit the section.
Section 70 (Crown employment)	In the proviso, for “in the naval, military or air force service of the Crown” substitute “as a member of Her Majesty’s forces”.
Section 74 (Persons to be treated as employers in certain cases)	In subsection (1), for “this Act” (where those words occur in paragraph (c)) substitute “Part II or IV of this Act”; and for “for the purposes of this Act” substitute “in respect of benefit under this Act and the administration of such benefit”.

SCH. 1

Provision of Act	Amendment
Section 75 (Special provisions as to certain employments)	Omit subsection (2).
Section 77 (Supplementary schemes)	In subsection (1), for the first "by this Act" substitute "by Parts II and IV of this Act"; and for the third "this Act" substitute "those Parts". In subsection (2), at the end, insert—"and for the purposes of this section the following subsections shall be added to the said section 46— '(2) An order under subsection (1) with respect to any supplementary scheme may replace all or any of the provisions of the scheme (whether or not previously amended, varied or modified under that subsection) with new provisions consolidating those provisions as they are to have effect with the amendments, variations or modifications to be made by the order. (3) The Ministry after consulting the body charged with the administration of a supplementary scheme may make an order under this subsection for the purpose of consolidating the provisions of the scheme as for the time being amended, varied or modified. (4) Any order made by virtue of subsection (2) or (3) may revoke previous orders under this section relating to the scheme so far as they are superseded by the consolidation or have otherwise become obsolete or unnecessary'".
Section 78 (Great Britain)	Omit the section.
Section 79 (Countries outside United Kingdom)	In subsection (1), as originally enacted, for "the Governor by Order in Council" substitute "Her Majesty by Order in Council". In subsection (2), omit paragraph (c) and in paragraph (d) the words from "by payments" onwards.
Section 80 (Orders in Council, regulations, etc.)	Omit subsection (3).
Section 81 (Interpretation)	In subsection (1), in the definition of "claimant", for "means a person claiming" substitute "in relation to benefit under Part II or Part IV, means a person who has claimed such", and in paragraph (b) of the definition omit "the review of"; omit the definition of "day"; and in the definition of "earnings" for "a gainful

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Provision of Act	Amendment
Section 81 (Interpretation) —cont.	occupation " substitute " an employment (within the meaning of the Social Security Act) ". At the end of the section, add— "(6) Any reference in this Act to another enactment shall, except so far as the context otherwise requires, be construed as a reference to that enactment as amended or extended by or under any other enactment, including an enactment contained in this Act. (7) Except where the context otherwise requires, references in this Act to any Part of it include references to the Schedules of that Part."

*The Workmen's Compensation (Supplementation) Act
(Northern Ireland) 1966*

1966 c. 14 (N.I.).

3. The Workmen's Compensation (Supplementation) Act (Northern Ireland) 1966 shall be amended as shown below in this paragraph.

Provision of Act	Amendment
Section 4 (Provisions as to regulations for supplementing workmen's compensation)	In subsection (3), substitute the following for paragraph (c)— "(c) for applying, with or without modifications, paragraph 9 of Schedule 10 to the Social Security Act 1973 or any regulations under paragraph 8(1), (2) or (3) of that Schedule or for making provision corresponding thereto"; and in paragraph (e) after " Act or " insert " by way of benefit under "; and for the words from " that Act be " onwards substitute " the Industrial Injuries Act or the Social Security Act 1973 be recovered by deduction from any payment by way of benefit under the Industrial Injuries Act ".
Section 5 (Adjustment of benefit)	In subsection (3), after " Part II " insert " or IV ".
Section 9 (Application of enactments)	Omit paragraphs (a) and (b).

SCH. 1

The National Insurance (No. 2) Act (Northern Ireland) 1966

1966 c. 16 (N.I.). 4. The National Insurance (No. 2) Act (Northern Ireland) 1966 shall be amended as shown below in this paragraph.

Provision of Act	Amendment
Section 5 (Amendments of National Insurance (Industrial Injuries) Act (Northern Ireland) 1966)	Omit subsection (4).
Section 6 (Increase of disablement pension for exceptionally severe disablement)	Omit subsection (3).
Section 8 (Amendment as to determination of claims and questions)	In subsection (1), omit paragraph (a).
Schedule 2 (Modification of Insurance Act, Part IV, as to claims and questions under Industrial Injuries Act)	In paragraph 4(b), for "of which" substitute "or any other association which exists to promote the interest and welfare of its members, if in either case", and after "member" insert "of the association". Omit paragraph 5.

Section 6(3).

SCHEDULE 2

REPEALS

PART I

ENACTMENTS OF THE PARLIAMENT OF THE UNITED KINGDOM

Chapter	Short title	Extent of repeal
1965 c. 51.	The National Insurance Act 1965.	In section 71(1)(a), the words "(subject to any necessary modifications)". In section 73(2) the words "and other than a question as to entitlement to a death grant". In section 75(2), in paragraph (a), the words "the procedure which is to be followed". In section 76(1) the words "in like manner" and from the words "as a corresponding" onwards. Section 77(6). In section 81(6), the words "Part II of".

SCH. 2

Chapter	Short title	Extent of repeal
1965 c. 52.	The National Insurance (Industrial Injuries) Act 1965.	Sections 25(1)(b) and (c), 27, 28(1) and 30. In section 31, subsection (1), in subsection (2)(b) the words "or any course which he is so required to attend", and subsection (3). Sections 32(1), 33(2), 34(1) and (2) and 35(1), (3) and (4). In section 48(5) the words following paragraph (c). In section 50, subsection (1) and in subsection (2) paragraphs (e), (g) and (h) and in paragraph (a) the words "and the form of any document required". Sections 54, 64, 68, 70, 76 and 83. In section 84(2), paragraph (c) and in paragraph (d) the words from "by payments" onwards. In section 85, subsections (2), (4) and (6), and in subsection (5) the words "other than regulations to which subsection (4) of this section applies". In section 86(1), in paragraph (b) of the definition of "claimant", the words "the review of", and the definition of "day". Schedule 7.
1966 c. 6.	The National Insurance Act 1966.	Sections 5(4), 6(3) and 8(1)(a). In Schedule 2, paragraph 5.
1967 c. 34.	The Industrial Injuries and Diseases (Old Cases) Act 1967.	In section 13(1), paragraphs (a) and (b).
1973 c. 38.	The Social Security Act 1973.	In sections 2(7)(c) and 3(2)(c), the words "or (4)". Section 42(4). In section 48(4) the words from "the Joint Authority" to "by", the words "or Joint Authority" and the words "authority or". In section 49, in subsection (1) the words "40(2) to (4)", and subsections (6)(c), (7) and (8). In section 50(2) the words "of this Part of this Act".

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Chapter	Short title	Extent of repeal
1973 c. 38— <i>cont.</i>	The Social Security Act — <i>cont.</i>	In section 71(1) the words from “by reference” onwards. Sections 88(3), 94(8) and 95(5). In section 96(6) the words “or the Joint Authority”. In section 97(3) the words “or the Joint Authority” and the words “by the Secretary of State” (where they occur for the second time). In Schedule 7, in paragraph 6 the words “in paragraph 5”. In Schedule 10, in paragraph 6 the words from “paragraphs 4” to “and in”, and in paragraph 8(2)(a) the words “notwithstanding anything in this Act”. In Schedule 22, Part III (paragraph 15). In Schedule 25, paragraph 4(c), in paragraph 7 the words “or the Joint Authority”, paragraph 9 and paragraph 15(4).

PART II

ENACTMENTS OF THE PARLIAMENT OF NORTHERN IRELAND

Chapter	Short title	Extent of repeal
1958 c. 18 (N.I.).	The Statutory Rules Act (Northern Ireland) 1958.	Section 1(2)(f) and (g).
1966 c. 6 (N.I.).	The National Insurance Act (Northern Ireland) 1966.	In section 70(1)(a) the words “(subject to any necessary modifications)”. In section 72(2) the words “and other than a question as to entitlement to a death grant”. In section 74(2), in paragraph (a), the words “the procedure which is to be followed”. In section 75(1) the words “in like manner” and the words from “as a corresponding” onwards. Section 76(6). In section 80(6), the words “Part II of”.

SCH. 2

Chapter	Short title	Extent of repeal
1966 c. 9 (N.I.).	The National Insurance (Industrial Injuries) Act (Northern Ireland) 1966.	Sections 25(1)(b) and (c), 27, 28(1) and 30. In section 31, subsection (1), in subsection (2)(b) the words "or any course which he is so required to attend", and subsection (3). Sections 32(1), 33(2), 34(1) and (2) and 35(1), (3) and (4). In section 47(5) the words following paragraph (c). In section 49, subsection (1) and, in subsection (2), in paragraph (a) the words "and the form of any document required" and paragraphs (e), (g) and (h). Sections 53, 60, 64, 66, 75(2) and 78. In section 79(2), paragraph (c) and in paragraph (d) the words from "by payments" onwards. Section 80(3). In section 81(1), in paragraph (b) of the definition of "claimant" the words "the review of", and the definition of "day".
1966 c. 14 (N.I.).	The Workmen's Compensation (Supplementation) Act (Northern Ireland) 1966.	In section 9, paragraphs (a) and (b).
1966 c. 16 (N.I.).	The National Insurance (No. 2) Act (Northern Ireland) 1966.	Sections 5(4), 6(3) and 8(1)(a). In Schedule 2 paragraph 5.